ENGROSSED SENATE
BILL NO. 2067

By: Alvord and Mann of the Senate

and

Lepak of the House

An Act relating to financial institutions; amending 6 O.S. 2021, Section 2205, which relates to the Financial Privacy Act; permitting disclosure or release of information for investigations of financial exploitation of protected adults; defining terms; requiring employees of certain institutions to notify the institution of suspected financial exploitation of a protected adult; directing certain institution to notify proper agency; permitting certain institution to notify trusted contact of suspected financial exploitation of a protected adult; authorizing temporary holds; requiring provision of certain notice of temporary hold; requiring provision of certain timeline for temporary hold; exempting notice to trusted contact if contact is suspected of financial exploitation of the protected adult; providing immunity for certain institution and employees for compliance with section; requiring retention of certain records; permitting access to certain records upon certification by an agency that an investigation into financial exploitation of a protected adult is being undertaken by the agency; authorizing certain statement containing financial information during certain time frame; requiring requests to comply with the Financial Privacy Act; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 6 O.S. 2021, Section 2205, is amended to read as follows:

Section 2205. A. Nothing in the Financial Privacy Act shall prohibit the disclosure or release of any financial record or information to any supervisory agency in the exercise of its supervisory or regulatory functions with respect to a financial institution.

B. Nothing in the Financial Privacy Act prohibits a financial institution from disclosing or releasing any financial record or information to another financial institution for the usual and regular business purposes of the latter or from providing copies of any financial record to any court or government authority as an incident to perfecting a security interest, proving a claim in bankruptcy, or otherwise collecting on a debt either owed the financial institution itself or owed the financial institution in its role as a fiduciary.

C. Nothing in the Financial Privacy Act prohibits a financial institution from notifying a government authority that such institution or an officer, employee, or agent of such institution has information that may be relevant to a possible violation of any statute or regulation.

D. Sections 2201 through 2204 of this title shall not apply to any court order or subpoena issued in connection with proceedings before a multicounty grand jury, except that a court shall have authority to order a financial institution, on which a multicounty grand jury subpoena for customer records has been served, not to notify the customer of the existence of the subpoena or information that has been furnished to the multicounty grand jury. The court may order that the customer not be notified only if it finds:

1. That the requested records are relevant to an ongoing criminal investigation being conducted by the multicounty grand jury; and

2. That disclosure of the existence or issuance of, or compliance with the subpoena may frustrate or impede the investigation.

E. Nothing in the Financial Privacy Act shall prohibit the disclosure or release of any financial record or information as required by Section 2 of this act.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3401 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Account" means any account of a financial institution or trust business for which a protected adult has the authority to transact business;

2. "Agency" means one or more of the following:

a. the Department of Human Services,

b. the office of the district attorney in the county in which the suspected exploitation occurred, or

c. any state or federal law enforcement agency with jurisdiction over the area in which the suspected exploitation occurred;

3. "Financial exploitation" means:

a. the wrongful or unauthorized taking, withholding, appropriation, or use of money, assets, or property of a protected adult, or

b. any act or omission taken by a person, including through the use of a power of attorney, guardianship, conservatorship, or any other authority, regarding a protected adult, to:

(1) obtain control, through the use of intimidation, undue influence, coercion, harassment, duress, deception, false representation, or false pretense, over the protected adult's money, assets, or property, or

(2) convert or divert money, assets, or property of the protected adult to deprive the protected adult of the ownership, use, benefit, or possession of the money, assets, or property;

4. "Financial institution" has the same meaning as defined in Section 2202 of Title 6 of the Oklahoma Statutes;

5. "Institution" means a financial institution or trust business;

6. “Protected adult” means:

a. an individual sixty-two (62) years of age or older, or

b. an incapacitated person or a vulnerable adult as such terms are defined in the Protective Services for Vulnerable Adults Act;

7. “Trust business” means the same as defined in Section 1702 of Title 6 of the Oklahoma Statutes; and

8. “Trusted contact” means any adult person designated by a customer of an institution that the institution may contact in the event of an emergency or loss of contact with the customer, or in the event of suspected third-party fraud or financial exploitation targeting the customer.

B. If an employee of an institution reasonably believes that financial exploitation of a protected adult in this state has occurred, is occurring, has been attempted, is being attempted, or will be attempted, the employee shall notify the institution of the suspected financial exploitation. If the institution reasonably believes that financial exploitation has occurred or is occurring, the institution shall promptly notify one or more of the proper agencies pursuant to the provisions of the Protective Services for Vulnerable Adults Act.

C. If an institution believes that financial exploitation of a protected adult has occurred, is occurring, has been attempted, is being attempted, or will be attempted, in or from this state, the institution may notify the trusted contact, or in the absence of such designation, any other third party that the institution reasonably believes is associated with the protected adult.

D. 1. An institution transacting business in or from this state with a protected adult may place a temporary hold on a transaction with or a disbursement of funds from an account of such protected adult or an account on which such protected adult is a beneficiary if:

a. the institution believes that financial exploitation of a protected adult has occurred, is occurring, has been attempted, is being attempted, or will be attempted, and

b. the institution:

(1) immediately, but in no event more than three (3) business days after the date the temporary hold is first placed, provides oral or written notification, which may be electronic, of the temporary hold and the reason to all parties authorized to transact business with the account and to any trusted contact, and

(2) immediately initiates an internal review of the suspected or attempted financial exploitation of the protected adult, as necessary.

2. An agency or a court of competent jurisdiction may terminate or extend a temporary hold authorized by this subsection. Any temporary hold of a transaction or disbursement of funds as authorized by this subsection shall expire upon the earlier of:

a. a determination by the institution that the transaction or disbursement of funds shall not result in financial exploitation of the protected adult, or

b. not later than ten (10) business days after the date on which the institution first placed the temporary hold on the transaction or disbursement of funds, unless the institution's internal review of the facts and circumstances supports the institution's reasonable belief that financial exploitation of the protected adult has occurred, is occurring, has been attempted, or will be attempted, or the institution receives a request for an extension by one or more of the agencies, in which case the institution may extend the temporary hold to not later than twenty (20) business days after the date the institution first placed the temporary hold on the transaction or disbursement of the funds.

3. Nothing in this subsection shall require an institution to place a temporary hold on any transaction with or disbursement of

funds from an account of a protected adult or an account on which such protected adult is a beneficiary.

E. Notwithstanding the provisions of subsections C and D of this section, a notification permitted or required by this section shall not be made to any person the institution reasonably believes has engaged, is engaging, or will engage in suspected or attempted financial exploitation of the protected adult.

F. 1. An institution, or any employee of an institution, who makes a notification or report under subsection B of this section, makes a notification or report to a third party under subsection C of this section, provides records to any agency pursuant to subsection G of this section, or testifies or otherwise participates in a judicial proceeding arising from such notification, report, or provision of records, shall be immune from any civil or criminal liability arising from the notification, report, provision of records, testimony, or participation in the judicial proceeding, unless the employee or institution acted in bad faith or with a malicious purpose.

2. An institution that places, releases, or does not place a hold on any transaction pursuant to subsection D of this section shall be immune from any civil or criminal liability, as well as any disciplinary action from the Banking Department, from that action or failure to act, unless the institution acted in bad faith or with a malicious purpose.

G. An institution shall retain and, to the extent permitted by state and federal law, may provide access to or copies of records that are relevant to the suspected or attempted financial exploitation of a protected adult to any agency upon the written certification of the agency that an investigation into the financial exploitation of a protected adult is being undertaken by the agency. Upon such certification, the agency may request an institution to furnish, and an institution may, but shall not be required to, furnish, a statement setting forth the following information with respect to a customer account specified by the requesting party for a period of ninety (90) days before and up to sixty (60) days following the date of occurrence of the alleged illegal act involving the account:

1. The number of items dishonored;

2. The number of items paid that created overdrafts;

3. The dollar volume of the dishonored items and items paid which created overdrafts and a statement explaining any credit arrangement between the bank, credit union, or savings association and customer to pay overdrafts;

4. The dates and amounts of deposits and debits and the account balance;

5. A copy of the signature card, including the signature and any addresses appearing on a customer's signature card;

6. New bank cards issued;

7. Change of address requests received;

8. Power of attorney or trust documents submitted or executed;

9. The date the account opened and, if applicable, the date the account closed; and

10. Surveillance photographs and video recordings of persons accessing the victim’s financial account via an automated teller machine (ATM) or from within the institution for dates on which illegal acts involving the account were alleged to have occurred. This paragraph shall not be construed to:

a. require an institution to produce a photograph or video recording if the institution does not possess the photograph or video recording, or

b. affect any existing civil immunities under state law.

A bank, credit union, or savings association that provides the requesting party with copies of one or more complete account statements prepared in the regular course of business shall be deemed to be in compliance with paragraphs 1 through 4 of this subsection.

H. Any request for information from an agency, not including the provisions of this section, shall comply with the Financial Privacy Act. Nothing in subsection G of this section shall be construed to prohibit an institution from requiring the agencies to comply with the Financial Privacy Act.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 16th day of March, 2026.

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Presiding Officer of the Senate

Passed the House of Representatives the ____ day of __________, 2026.

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Presiding Officer of the House of Representatives